

# United Arab Emirates

## Transfer Pricing Country Profile<sup>1</sup>

October 2025

|                            |                                                                                                                                                                                                                                                                                          | SUMMARY                                                                                                                                                                                                                                                                                                                                                           | REFERENCE                                                       |
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| The Arm's Length Principle |                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                   |                                                                 |
| 1                          | Does your domestic transfer pricing framework <sup>2</sup> make reference to the arm's length principle?                                                                                                                                                                                 | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No                                                                                                                                                                                                                                                                                            | <a href="#">Federal Tax Authority Transfer Pricing Guide</a>    |
| 2                          | Does your domestic transfer pricing framework give the OECD Transfer Pricing Guidelines any role or status (e.g. legal binding effect, subsidiary application in the absence of domestic legislation, source of interpretation of domestic legislation and/or treaty provisions, other)? | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No<br><br>There is currently no explicit reference to the OECD Guidelines in UAE Corporate Tax Legislation, but UAE transfer pricing guidance does refer to the 2022 Transfer Pricing Guidelines which acts as an interpretation of the arm's length standard for UAE Corporate Tax purposes. | <a href="#">Federal Tax Authority Transfer Pricing Guide</a>    |
| 3                          | Does your domestic transfer pricing framework provide for a definition of related parties applicable for                                                                                                                                                                                 | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No                                                                                                                                                                                                                                                                                            | <a href="#">UAE Corporate Tax Law Federal Decree Law No. 47</a> |

<sup>1</sup> Information in transfer pricing country profiles is provided directly by jurisdictions. By publishing the transfer pricing country profiles on the OECD website, the OECD does not certify the accurateness of the information provided therein. Importantly, transfer pricing country profiles published on the OECD website are made available to stakeholders for information purposes only, and are not intended to be used in substitution to a jurisdiction's legal instruments, jurisprudence, or administrative guidance or practice nor relied on as an accurate and complete description of domestic law.

<sup>2</sup> For purposes of transfer pricing country profiles, the term "domestic transfer pricing framework" refers to a jurisdiction's domestic legislation, regulations, administrative guidance or practice, jurisprudence or governing general principles in the jurisdiction.

|  |                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |
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|  | <p><b>transfer pricing purposes? If so, please provide the definition contained under your domestic transfer pricing framework.</b></p> | <p>Related Parties are defined in Article 35 of the UAE Corporate Tax Law. Related parties are defined as any of the following:</p> <ul style="list-style-type: none"> <li>a) Two or more natural persons who are related within the fourth degree of kinship or affiliation, including by way of adoption or guardianship.</li> <li>b) A natural person and a juridical person where: <ul style="list-style-type: none"> <li>1. the natural person or one or more Related Parties of the natural person are shareholders in the juridical person, and the natural person, alone or together with its Related Parties, directly or indirectly owns a 50% (fifty percent) or greater ownership interest in the juridical person; or</li> <li>2. the natural person, alone or together with its Related Parties, directly or indirectly Controls the juridical person.</li> </ul> </li> <li>c) Two or more juridical persons where: <ul style="list-style-type: none"> <li>1. one juridical person, alone or together with its Related Parties, directly or indirectly owns a 50% (fifty percent) or greater ownership interest in the other juridical person;</li> <li>2. one juridical person, alone or together with its Related Parties, directly or indirectly Controls the other juridical person; or</li> <li>3. any Person, alone or together with its Related Parties, directly or indirectly owns a 50% (fifty percent) or greater ownership interest in or Controls such two or more juridical persons;</li> </ul> </li> <li>d) A Person and its Permanent Establishment or Foreign Permanent Establishment</li> <li>e) Two or more Persons that are partners in the same Unincorporated Partnership</li> <li>f) A Person who is the trustee, founder, settlor or beneficiary of a trust or foundation</li> </ul> <p>“Control” means the ability of a Person, whether in their own right or by agreement or otherwise to influence another Person, including:</p> <ul style="list-style-type: none"> <li>a) The ability to exercise 50% (fifty percent) or more of the voting rights of another Person.</li> <li>b) The ability to determine the composition of 50% (fifty percent) or more of the Board of directors of another Person.</li> <li>c) The ability to receive 50% (fifty percent) or more of the profits of another Person.</li> </ul> |  |
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|                                     |                                                                                                                                                   | d) The ability to determine, or exercise significant influence over, the conduct of the Business and affairs of another Person.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                     |                                     |                                     |      |              |                                |                                     |                                     |                                     |                                     |                                     |                                     |                                                                 |
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| Transfer Pricing Methods            |                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                     |                                     |                                     |      |              |                                |                                     |                                     |                                     |                                     |                                     |                                     |                                                                 |
| 4                                   | Does your domestic transfer pricing framework provide for transfer pricing methods to be used in respect of transactions between related parties? | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No<br><br>If affirmative, please check those provided for in your legislation: <table border="1"> <thead> <tr> <th>CUP</th><th>Resale Price</th><th>Cost Plus</th><th>TNMM</th><th>Profit Split</th><th>Other (If so, please describe)</th></tr> </thead> <tbody> <tr> <td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> </tbody> </table> <p>Any Other Method is permitted to be used if the taxpayer can demonstrate that none of the five OECD recognised methods (i.e. CUP, RPM, Cost Plus, TNMM and Profit Split) can be reasonably applied to determine an arm's length result and that it provides for the same result that would have occurred had the transaction occurred between independent parties.</p> | CUP                                 | Resale Price                        | Cost Plus                           | TNMM | Profit Split | Other (If so, please describe) | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <a href="#">UAE Corporate Tax Law Federal Decree Law No. 47</a> |
| CUP                                 | Resale Price                                                                                                                                      | Cost Plus                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | TNMM                                | Profit Split                        | Other (If so, please describe)      |      |              |                                |                                     |                                     |                                     |                                     |                                     |                                     |                                                                 |
| <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/>                                                                                                               | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |      |              |                                |                                     |                                     |                                     |                                     |                                     |                                     |                                                                 |
| 5                                   | Which criterion is provided for in your domestic transfer pricing framework for the application of transfer pricing methods?                      | Please check all that apply:<br><input type="checkbox"/> Hierarchy of methods<br><input checked="" type="checkbox"/> Most appropriate method<br><input type="checkbox"/> Other (if so, please explain)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                     |                                     |                                     |      |              |                                |                                     |                                     |                                     |                                     |                                     |                                     |                                                                 |
| 6                                   | Does your domestic transfer pricing framework contain specific guidance on commodity transactions?                                                | <input checked="" type="checkbox"/> Yes <ul style="list-style-type: none"> <li><input checked="" type="checkbox"/> For controlled transactions involving commodities, the guidance contained in paragraphs 2.18-2.22 of the TPG is followed.</li> <li><input type="checkbox"/> Domestic transfer pricing framework provides for the use of a specific method for controlled transactions involving commodities (if so, please explain)</li> </ul> <input type="checkbox"/> No                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                     |                                     |                                     |      |              |                                |                                     |                                     |                                     |                                     |                                     |                                     |                                                                 |

## Comparability Analysis

|    |                                                                                                                                                                                                                                  |                                                                                                                           |                                                              |
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| 7  | <b>Does your jurisdiction follow (or largely follow) the guidance on comparability analysis outlined in Chapter III of the TPG?</b>                                                                                              | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No                                                    |                                                              |
| 8  | <b>Is there a preference in your jurisdiction for domestic comparables over foreign comparables?</b>                                                                                                                             | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No                                                    |                                                              |
|    |                                                                                                                                                                                                                                  | There is preference for domestic comparables but if these are not available, regional/global comparables may be accepted. | <a href="#">Federal Tax Authority Transfer Pricing Guide</a> |
| 9  | <b>Does your domestic transfer pricing framework permit the use of secret comparables for transfer pricing assessment purposes?</b>                                                                                              | <input type="checkbox"/> Yes<br><input checked="" type="checkbox"/> No                                                    |                                                              |
| 10 | <b>Does your domestic transfer pricing framework allow or require the use of an arm's length range and/or statistical measure (e.g. the interquartile range or other percentiles) for determining arm's length remuneration?</b> | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No                                                    |                                                              |
| 11 | <b>Are comparability adjustments required under your domestic transfer pricing framework?</b>                                                                                                                                    | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No                                                    | <a href="#">Federal Tax Authority Transfer Pricing Guide</a> |
|    |                                                                                                                                                                                                                                  | Comparability adjustments are required if it enhances the reliability and comparability of the selected comparables.      |                                                              |

| Intangible Property                    |                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                      |                                                              |
|----------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------|
| 12                                     | <b>Does your domestic transfer pricing framework contain guidance specific to the pricing of controlled transactions involving intangibles?</b>              | <input checked="" type="checkbox"/> Yes. If so, does your domestic transfer pricing framework follow (or largely follow) the guidance in Chapter VI of the TPG?<br><input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No (please provide further explanations below)<br><input type="checkbox"/> No | <a href="#">Federal Tax Authority Transfer Pricing Guide</a> |
|                                        |                                                                                                                                                              | The UAE transfer pricing guidance broadly aligns with Chapter VI of the OECD Transfer Pricing Guidelines.                                                                                                                                                                                                            |                                                              |
| 13                                     | <b>Are there any other rules outside your transfer pricing framework that are relevant for the pricing of controlled transactions involving intangibles?</b> | <input type="checkbox"/> Yes<br><input checked="" type="checkbox"/> No                                                                                                                                                                                                                                               |                                                              |
| Hard-to-Value Intangibles <sup>3</sup> |                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                      |                                                              |
| 14                                     | <b>Does your domestic transfer pricing framework contain guidance specific to hard-to-value intangibles (HTVI)?<sup>4</sup></b>                              | <input type="checkbox"/> Yes. If so, does your domestic transfer pricing framework follow the guidance on HTVI in Chapter VI of the TPG?<br><input type="checkbox"/> Yes<br><input type="checkbox"/> No (please provide further explanations below)<br><input checked="" type="checkbox"/> No                        | <a href="#">Federal Tax Authority Transfer Pricing Guide</a> |
|                                        |                                                                                                                                                              | There is no specific guidance in UAE law or guidance on the treatment of hard-to-value intangibles, but Chapter VI of the OECD Transfer Pricing Guidelines would be the framework adopted.                                                                                                                           |                                                              |
| 15                                     | <b>If your jurisdiction applies the HTVI approach, what are the</b>                                                                                          | N/A                                                                                                                                                                                                                                                                                                                  |                                                              |

<sup>3</sup> Please note that questions in this section are imported from the HTVI questionnaire and integrated into this TPCP to centralise all jurisdiction-related transfer pricing information.

<sup>4</sup> In the case of jurisdictions that do not apply the HTVI approach (i.e. they responded “no” to question 14), it is not necessary to respond to the remaining questions in the HTVI section and these questions will not be published as part of jurisdiction’s transfer pricing country profile.

|    |                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                       |  |
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|    | <b>conditions for the application of the HTVI approach?</b>                                                                                                                                                                                                                            |                                                                                                                                                                                                                                       |  |
| 16 | <b>Are transactions falling within the scope of the HTVI approach subject to a transfer pricing analysis different from the one established in Chapters I and VI, or to other compliance requirements specifically applicable to transfer prices (e.g. domestic anti-abuse rules)?</b> | N/A                                                                                                                                                                                                                                   |  |
| 17 | <b>What is the statute of limitations applicable to transactions falling within the scope of the HTVI approach in your domestic transfer pricing framework? Does this statute of limitations differ from those applicable to other transactions?</b>                                   | N/A                                                                                                                                                                                                                                   |  |
| 18 | <b>Can taxpayers request a bilateral or multilateral advance pricing agreement (“APA”) for transactions falling within the scope of the HTVI approach under your domestic transfer pricing framework?</b>                                                                              | <input type="checkbox"/> Yes<br><input checked="" type="checkbox"/> No                                                                                                                                                                |  |
|    |                                                                                                                                                                                                                                                                                        | There is currently not a live APA program in the UAE.                                                                                                                                                                                 |  |
| 19 | <b>What measures exist or approaches have been adopted to avoid the use of hindsight (e.g. training of tax administrators, internal circulars/informative notes)?</b>                                                                                                                  | The UAE has hired personnel from mature tax jurisdictions to upskill tax policy and administration team members and ensure that OECD transfer pricing principles will be exercised in guidance provided or tax assessments performed. |  |
| 20 | <b>Is it possible for your tax administration to make adjustments under the HTVI approach in open years amounts pertaining to closed years?</b>                                                                                                                                        | <input type="checkbox"/> Yes<br><input type="checkbox"/> No<br><input checked="" type="checkbox"/> N/A                                                                                                                                |  |

|                             |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                       |                                                              |
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| 21                          | <b>Does your domestic transfer pricing framework allow the tax administration to make corresponding adjustments under the HTVI approach in open years for amounts pertaining to closed years?</b> | <input type="checkbox"/> Yes<br><input type="checkbox"/> No<br><input checked="" type="checkbox"/> N/A                                                                                                                                                                                                                |                                                              |
| 22                          | <b>Is it possible for your tax administration to make several adjustments for one single HTVI transaction under the HTVI approach?</b>                                                            | <input type="checkbox"/> Yes<br><input type="checkbox"/> No<br><input checked="" type="checkbox"/> N/A                                                                                                                                                                                                                |                                                              |
| <b>Intra-group Services</b> |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                       |                                                              |
| 23                          | <b>Does your domestic transfer pricing framework provide guidance specific to intra-group services transactions?</b>                                                                              | <input checked="" type="checkbox"/> Yes. If so, does your domestic transfer pricing framework follow (or largely follow) the guidance in Chapter VII of the TPG?<br><input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No (please provide further explanations below)<br><input type="checkbox"/> No | <a href="#">Federal Tax Authority Transfer Pricing Guide</a> |
| 24                          | <b>Does your domestic transfer pricing framework provide for or allow the application of a simplified approach for low value-adding intra-group services?</b>                                     | <input checked="" type="checkbox"/> Yes. If so, does it follow (largely follow) the low value-adding services approach in Chapter VII?<br><input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No (please provide further explanations below)<br><input type="checkbox"/> No                           |                                                              |
| 25                          | <b>Are there any other rules outside your transfer pricing framework for pricing intragroup services?</b>                                                                                         | <input type="checkbox"/> Yes<br><input checked="" type="checkbox"/> No                                                                                                                                                                                                                                                |                                                              |

| Financial Transactions         |                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                        |                                                              |
|--------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------|
| 26                             | <b>Does your domestic transfer pricing framework provide guidance specific to financial transactions?</b>                                                                                                                                                                                                           | <input checked="" type="checkbox"/> Yes. If so, does your domestic transfer pricing framework follow (or largely follow) the guidance in Chapter X of the TPG?<br><input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No (please provide further explanations below)<br><input type="checkbox"/> No    | <a href="#">Federal Tax Authority Transfer Pricing Guide</a> |
| 27                             | <b>Are there any other rules outside your transfer pricing framework that are relevant for the tax treatment of financial transactions?</b><br><i>(e.g. whether your jurisdiction has implemented the measures in BEPS Action 4 to limit interest deductions and other financial payments or any similar rules)</i> | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No<br><br>The UAE Corporate Tax law has implemented BEPS Action 4 and therefore interest deductions are limited, largely in line with the provisions of the BEPS Action 4 requirements.                                                            |                                                              |
| Cost Contribution Arrangements |                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                        |                                                              |
| 28                             | <b>Does your jurisdiction allow cost contribution arrangements?</b>                                                                                                                                                                                                                                                 | <input checked="" type="checkbox"/> Yes. If so, does your domestic transfer pricing framework follow (or largely follow) the guidance in Chapter VIII of the TPG?<br><input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No (please provide further explanations below)<br><input type="checkbox"/> No | <a href="#">Federal Tax Authority Transfer Pricing Guide</a> |



## Transfer Pricing Documentation

|    |                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                     |
|----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 29 | <b>Does your domestic transfer pricing framework require the taxpayer to prepare transfer pricing documentation?</b>                                                            | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No<br><i>If affirmative, please check all that apply:</i> <ul style="list-style-type: none"> <li><input checked="" type="checkbox"/> Master file consistent with Annex I to Chapter V of the TPG</li> <li><input checked="" type="checkbox"/> Local file consistent with Annex II to Chapter V of the TPG</li> <li><input checked="" type="checkbox"/> Country-by-country report consistent with Annex III to Chapter V of the TPG</li> <li><input checked="" type="checkbox"/> Specific transfer pricing returns (separate or annexed to the tax return)</li> <li><input type="checkbox"/> Other (specify):</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | <a href="#">Ministerial Decision No. 97 of 2023 Requirements for Maintaining Transfer Pricing Documentation</a><br><br><a href="#">Federal Tax Authority Transfer Pricing Guide</a> |
| 30 | <b>Please briefly explain the relevant requirements related to each transfer pricing documentation requirement (i.e. timing for preparation or submission, languages, etc.)</b> | <p>The Master File and Local File are not required to be submitted but may be requested by the Federal Tax Authority, in which case such documentation should be provided within 30 days. The Files may be in English and/or Arabic.</p> <p>Broadly speaking, taxpayers must maintain both Master File and Local file if they either are a) a constituent entity of a MNE that has total consolidated group revenues of 3.15 billion UAE Dirhams (AED) in a Tax Period; or b) the taxpayer has revenue in a Tax period of AED 200 million or more.</p> <p>The CbC report must be prepared by all MNE groups headquartered in the UAE that have consolidated group revenue in the preceding year equal to or above AED 3.15 billion (approx. EUR 750 million). The Ultimate Parent Entity will be required to file the CbC report no later than 12 months after the last day of each reporting year of the MNE Group in the UAE.</p> <p>The Corporate Tax Return also requires taxpayers to file a TP disclosure form disclosing all transactions with related parties (as defined in Article 35 of the UAE Corporate Tax Law) where the aggregate amount exceeds AED 40 million. Separately, payments to connected persons (as defined under Article 36) must also be disclosed, as part of the disclosure, if the aggregate payment/benefit exceeds AED 500 000.</p> |                                                                                                                                                                                     |

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| 31                                                                  | <b>Does your domestic transfer pricing framework provide for specific transfer pricing penalties and/or compliance incentives regarding transfer pricing documentation?</b> | <input type="checkbox"/> Yes<br><input checked="" type="checkbox"/> No<br><br>There are no specific transfer pricing penalties in the UAE tax legislation. However, the applicable Corporate Tax penalties (outlined in Cabinet Decision No. 75 of 2023) would apply such that, for example, penalties for not maintaining appropriate records and information would be applicable for not maintaining appropriate transfer pricing records for related party transactions.                                                                                                                                                                                                                                                                                                                                                                          |                                   |
| 32                                                                  | <b>Does your domestic transfer pricing framework provide for exemption from transfer pricing documentation obligations?</b>                                                 | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No<br><br>Taxpayers that fall below the thresholds above are not required to maintain a Master File or Local File but must maintain records to support the arm's length nature of its related party transactions or payments to Connected Persons.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                   |
| <b>Administrative Approaches to Avoiding and Resolving Disputes</b> |                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                   |
| 33                                                                  | <b>Which mechanisms are available in your jurisdiction to prevent and/or resolve transfer pricing disputes?</b>                                                             | Please check those that apply:<br><input checked="" type="checkbox"/> Rulings<br><input type="checkbox"/> Enhanced engagement or cooperative compliance programmes<br><input type="checkbox"/> Advance Pricing Agreements (APA)<br><input type="checkbox"/> Unilateral APAs<br><input type="checkbox"/> Bilateral APAs<br><input type="checkbox"/> Multilateral APAs<br><input type="checkbox"/> International Compliance Assurance Programme (ICAP)<br><input checked="" type="checkbox"/> Mutual Agreement Procedures<br><input type="checkbox"/> Other ( <i>please specify</i> ):<br><br>Tax rulings are available to provide a transfer pricing position (not a unilateral APA) on related party transactions. The MAP procedure is also available for taxpayers and MAP guidance is provided for on the website of the UAE Ministry of Finance. | <a href="#">UAE's MAP Profile</a> |

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|                                                                                               |                                                                                                                                                                                                                                              | Further information is available at the UAE's OECD MAP Profile.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |
| <b>Simplified and Streamlined Approach for Baseline Marketing and Distribution Activities</b> |                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |
| 34                                                                                            | <b>Does your domestic transfer pricing framework allow the application of the simplified and streamlined approach for baseline marketing and distribution activities in the relevant Annex of Chapter IV of the TPG?</b>                     | <input type="checkbox"/> Yes<br><input type="checkbox"/> No<br><input checked="" type="checkbox"/> Other (please elaborate)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |
|                                                                                               |                                                                                                                                                                                                                                              | No position has yet been taken on the adoption of Amount B.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |
| 35                                                                                            | <b>If your domestic transfer pricing framework allows the application of the simplified and streamlined approach, how is it implemented?</b>                                                                                                 | <input type="checkbox"/> In-scope tested parties resident within the jurisdiction can elect to apply the simplified and streamlined approach (i.e. safe harbour)<br><input type="checkbox"/> In-scope tested parties resident within the jurisdiction are required to follow the simplified and streamlined approach for in-scope qualified transactions and tax administrations are allowed to impose the application of the simplified and streamlined approach to in-scope qualified transactions of tested parties resident within their jurisdiction (i.e. rule)<br><input checked="" type="checkbox"/> N/A |  |
| 36                                                                                            | <b>If your domestic transfer pricing framework allows the application of the simplified and streamlined approach, what is the operating expense to sales (OES) upper bound chosen by your jurisdiction regarding scoping criterion 13.b?</b> | <input type="checkbox"/> 20%<br><input type="checkbox"/> 30%<br><input type="checkbox"/> Other (please specify)<br><input checked="" type="checkbox"/> N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |
| 37                                                                                            | <b>Does your jurisdiction respect the outcome of the application of the simplified and streamlined approach by a covered jurisdiction</b>                                                                                                    | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No<br><input type="checkbox"/> N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |

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|                                                               | <b>in line with the Inclusive Framework political commitment?</b>                                                                                                                                                                                                                                     | The UAE is committed to the political commitment on Amount B, as a member of the Inclusive Framework, subject to the required domestic legal and administrative protocols being fulfilled.                                                                                                                                                                                                                                                                                                                       |  |
| 38                                                            | <b>If your domestic transfer pricing framework allows the application of the simplified and streamlined approach for resident in-scope tested parties, does your jurisdiction respect the outcome of the application of such approach by another jurisdiction that is not a covered jurisdiction?</b> | <input type="checkbox"/> Yes<br><input type="checkbox"/> No<br><input checked="" type="checkbox"/> N/A                                                                                                                                                                                                                                                                                                                                                                                                           |  |
| <b>Safe Harbours and Other Simplification Measures</b>        |                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |
| 39                                                            | <b>Does your jurisdiction provide for any safe harbours or other simplification measures in respect of certain industries, types of taxpayers, or types of transactions (not listed in other sections of this questionnaire)?</b>                                                                     | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No<br><br>Whilst not directly related to transfer pricing, the UAE has a Small Business Relief regime whereby companies with total revenues of less than AED 3 million (approx. USD 800 000) in each financial year prior to 2027 can benefit from Small Business Relief where a simplified tax return is required and no taxable income is deemed to arise. Such entities are also exempt from transfer pricing documentation requirements. |  |
| <b>Other Legislative Aspects or Administrative Procedures</b> |                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |
| 40                                                            | <b>Does your domestic transfer pricing framework allow downward corresponding adjustments in the absence of a mutual agreement procedure (e.g. unilateral corresponding adjustments)?</b>                                                                                                             | <input checked="" type="checkbox"/> Yes<br><input type="checkbox"/> No                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |

|                                                           |                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |
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| 41                                                        | <b>Does your domestic transfer pricing framework allow or require taxpayers to make year-end adjustments?</b>                         | <input type="checkbox"/> Yes. Year-end adjustments are required.<br><input checked="" type="checkbox"/> Yes. Year-end adjustments are allowed.<br><input type="checkbox"/> No<br><br>Yes, these can be undertaken as part of the self-assessment tax return.                                                                                                                                                                                                                                                                                                                                                         |  |
| 42                                                        | <b>Does your domestic transfer pricing framework provide for secondary adjustments?</b>                                               | <input type="checkbox"/> Yes<br><input checked="" type="checkbox"/> No                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |
| <b>Attribution of Profits to Permanent Establishments</b> |                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |
| 43                                                        | <b>Which version of Article 7 of the OECD Model Tax Convention on Income and on Capital do your tax treaties contain?</b>             | <input type="checkbox"/> Article 7 as it read before 2010.<br><br><input type="checkbox"/> If so, please indicate in how many treaties:<br><input type="checkbox"/> Article 7 as it reads after 2010.<br><br><input type="checkbox"/> If so, please indicate in how many treaties:<br><input type="checkbox"/> Other (please provide additional details)<br><br>The UAE has a large tax treaty network which contain treaties signed across the past thirty years and, as such, there are a variety of Article 7 provisions across these treaties, some of which follow the OECD Model and some follow the UN Model. |  |
| 44                                                        | <b>For tax treaties containing Article 7 as it read before 2010, does your jurisdiction apply the authorized OECD approach (AOA)?</b> | <input type="checkbox"/> Yes<br><input type="checkbox"/> No (please explain the approach used and which tax treaties are concerned)<br><br>The AOA is not adopted in domestic corporate tax law and thus the approach to profit attribution of permanent establishments would be reliant on the relevant tax treaty provisions.                                                                                                                                                                                                                                                                                      |  |

|                                   |                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |
|-----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| 45                                | <b>Does your domestic transfer pricing framework contain specific guidance for the attribution of profits to permanent establishments of non-resident entities? If so, please provide a summary of the main features of this guidance.</b> | <input type="checkbox"/> Yes, they follow the AOA as described in the 2008 Report on the Attribution of Profits to Permanent Establishments<br><input type="checkbox"/> Yes, they follow the AOA as described in the 2010 Report on the Attribution of Profits to Permanent Establishments<br><input type="checkbox"/> Yes, they do not follow the AOA (please provide a summary of the main features of these rules)<br><input checked="" type="checkbox"/> No |  |
| <b>Other Relevant Information</b> |                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |
| 46                                | <b>Other legislative aspects or administrative procedures regarding transfer pricing</b>                                                                                                                                                   | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |
| 47                                | <b>Other relevant information</b> (e.g. <i>whether your jurisdiction is preparing new transfer pricing regulations, or other relevant aspects not addressed in this questionnaire</i> )                                                    | An APA program is expected to be released during the course of 2026.                                                                                                                                                                                                                                                                                                                                                                                            |  |

For more information, please visit: <https://www.oecd.org/en/topics/sub-issues/transfer-pricing/transfer-pricing-country-profiles.html>